

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

WALTER ALEXANDER CEA ALVARADO,

Respondent

) Case Number: FCS-24-356739

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Walter Alexander Cea Alvarado (Father) and Sandra Irene Lopez Zuniga (Mother) have one minor child, Zayden (DOB: 9/22/2018, age 7).
- 2) On for hearing is Mother's 4/15/2026 Request seeking joint legal and physical custody of Zayden, with the following parenting time schedule: Mother: Monday and Tuesday nights; Father: Tuesday and Wednesday nights; parties: alternate weekends. Mother states the parties are currently following an informal and inconsistent schedule, which has led to confusion, instability, and unnecessary tension between the parties.
- 3) The parties attended mediation and were unable to reach an agreement. Father's request is as follows: Week 1: Mother: Tuesday and Thursday; Father: Monday, Wednesday, Friday, Saturday, and Sunday; Week 2: Father: Tuesday and Thursday; Mother: Monday, Wednesday, Friday, Saturday, and Sunday. Both parties would like the exchanges to occur at Mother's residence at 8AM when school is not in session.

1 **B. Findings and Orders**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
3 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
4 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) The Court finds it is in Zayden's best interest for the parties to share joint legal and physical
7 custody of Zayden, with parenting time as follows: Mother: Monday school pick up to
8 Wednesday school drop off; Father: Wednesday school pick up to Friday school drop off; parties:
9 alternate weekends, from Friday school pick up to Monday school drop off. All custody
10 exchanges shall occur at Mother's home, curbside, at 8AM when school is not in session.
- 11 3) If the parties wish to make changes to the above schedule, they may do so by agreeing to a
12 different schedule in writing (text message or email is acceptable). If they are unable to agree
13 regarding changing the schedule, either party may file a new request for order with the Court.
- 14 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

THERESA SMITH HENDERSON,

Petitioner

VS.

DAVID HENDERSON,

Respondent

) Case Number: FMS-25-387591

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

NOTICE OF MOTION AND DECLARATION FOR JOINDER; REQUEST FOR ORDER RE:
JOINDER OF PARTY, NAME DAVID HENDERSON AS FATHER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Theresa Henderson (Mother) filed a Petition for Custody and Support on 8/20/2025. Mother alleges in the Petition that Respondent David Henderson is the father of Aaliyah Ranae Smith Dalton (DOB: 6/2/2013) and Elijah Noel Smith Henderson (DOB: 11/20/2014). Mother asks the Court to remove Edward James Dalton's name from Aaliyah's birth certificate, add Respondent's name to Aaliyah's birth certificate, and change Aaliyah's name to Aaliyah Ranae Smith Henderson. Mother attached to the Petition a DNA Test Report dated 2/9/2022 which purportedly shows that Respondent has a 99.99% probability of being Aaliyah's biological father; a copy of Aaliyah's birth certificate which lists Edward Dalton as her father; a copy of Elijah's birth certificate which shows Respondent as Elijah's father and a marriage certificate showing that Petitioner and Respondent married on 10/15/2016 (after both children were born).

- 2) According to the Amended Proof of Service of Summons filed on 8/20/2025, the Petition, Summons, and blank Response were personally served on Respondent by SASH Attorney Karin Alm at the Civic Center Courthouse on 8/20/2025.
- 3) On for hearing is Mother's Request for Order and Notice of Motion and Declaration for Joinder filed 1/29/2026. Mother asks that the Court join Edward James Dalton as a party to this proceeding, make a finding that Respondent is the father of Aaliyah and Elijah, order that Edward Dalton's name be removed from Aaliyah's birth certificate, add Respondent's name to Aaliyah's birth certificate, and change Aaliyah's name to Aaliyah Ranae Smith Henderson.
- 4) On 1/29/2026, Mother filed an Application for Order for Posting asking the Court for permission to serve her Request for Order and Motion for Joinder on Edward Dalton by posting. Mother attached a declaration to her Application for Order for Posting which states that she became pregnant in late 2012 and that she was residing in shelter in or about January 2013, Mother states she met Edward Dalton at the shelter and briefly entered into a relationship with him. Mother states she was already pregnant when she met Edward Dalton and that Edward Dalton was aware that she was pregnant when they met. Mother also states that Edward Dalton was married at the time she met him. Mother states Edward Dalton and his wife came to the hospital on the day Aaliyah was born. Mother states that Edward Dalton stated at the hospital, "I came here to see if I'm the dad." Mother states that she does not know how Edward Dalton's name came to be listed on Aaliyah's birth certificate and she does not believe Edward Dalton signed a Voluntary Declaration of Parentage. Mother states she has had no contact with Edward Dalton since that day in the hospital.
- 5) On 2/24/2026, the Court issued an Order for Posting and ordered Mother to serve on Edward Dalton the Request for Order, Motion for Joinder, and related pleadings via posting at the Civic Center Courthouse and to thereafter mail those documents to the shelter where Mother states she and Edward Dalton previously resided.
- 6) Neither Respondent nor Edward Dalton have filed any pleadings in this matter to date.
- 7) At the prior 4/30/2026 hearing, both Petitioner and Respondent appeared in pro per, although neither had objected to the Tentative Ruling. The parties stated they had completed all tasks

1 required. The Court stated it needed to see proof that Edward Dalton had been served. The Court
2 adopted its Tentative Ruling and ordered the following:

- 3 a. The hearing was continued to 7/14/2026.
 - 4 b. Mother was ordered to comply with the Order for Posting filed 2/24/2026 and also post
5 the following documents and mail the following documents to Hamilton Families shelter:
6 Application for Order for Posting filed 1/29/2026 and Findings and Order After Hearing
7 for the 4/30/2026 hearing date.
 - 8 c. Mother was ordered to serve the following documents on Respondent: Request for Order
9 filed 1/29/2026, Motion for Joinder (FL-371) filed 1/29/2026, Application for Order for
10 Posting filed 1/29/2026, Blank Responsive Declaration (FL-320), Tentative Ruling
11 Instructions, and Findings and Order After Hearing for the 4/30/2026 hearing date.
 - 12 d. Mother was ordered to file Proofs of Service demonstrating compliance with the orders
13 set forth above in advance of 7/14/2026 hearing date.
- 14 8) The Court also notes there are two related cases in this matter.
- 15 a. In related Case No. FPT-16-377025, a Stipulation and Order was filed on 4/19/2026
16 awarding joint legal custody of Aaliyah and Elijah to David Henderson and Mother and
17 awarding sole physical custody of the children to Mother. The stipulation also provides
18 that the children will reside with Mother and that David Henderson may request visitation
19 at any time pursuant to Mother's agreement. On 6/6/2018, David Henderson filed a
20 Request for Order seeking sole legal and physical custody of the children; however,
21 neither party appeared at the readiness hearing and the matter was dropped from calendar.
22 That was the last event that occurred in the FPT case. None of the orders made in the FPT
23 case contain parentage findings regarding the children.
 - 24 b. In related Case No. FDV-22-816136, on 2/10/2022, Mother filed a Request for Domestic
25 Violence Restraining Order against David Henderson. Mother requested that Aaliyah and
26 Elijah be additional protected parties and that she be awarded sole legal and physical
27 custody. Mother alleged that David Henderson abused her throughout their relationship,
28 beginning in 2006 or 2007 through January 2022. Neither party appeared for the hearing
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1 and the matter was dropped from calendar. That was the last event that occurred in the
2 FDV case.

3 **B. Findings and Order**

- 4 1) There have been no additional pleadings filed by either party since the prior 4/30/2026 hearing
5 date.
- 6 2) Mother's Request for Order and Motion for Joinder filed 1/29/2026 are denied without prejudice
7 to a new Request for Order.
- 8 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

VICKY LOW,

Petitioner

VS.

KENDRICK LOW,

Respondent

) Case Number: FDI-18-789941

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

RELEASE OF FUNDS BY HERSH FAMILY LAW (50/50) SINCE JULY 2021

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Vicky Low (Wife) and Respondent Kendrick Low (Husband) married on 7/25/1998 and separated on 4/25/2018, for a marriage of 19 years and 9 months. The parties have one adult daughter. Husband is represented by attorneys Laura Van Zandt and Ann Riley. Wife is self-represented.
- 2) On 10/27/2021, Judgment was entered which incorporated the parties' Marital Settlement Agreement (MSA). The MSA provides in relevant part
 - a. Section 2.03(f) – Jurisdiction is reserved over the characterization and division of Wife's IRA account.
 - b. Section 2.03(g) – The Court reserves jurisdiction to divide tangible personal property in the event the parties are unable to agree.
 - c. Section 2.07 - Jurisdiction is reserved over the following issues: (a) Wife's Family Code 2640 right to reimbursement for a \$25,000 contribution to acquisition of Moscow Street, according to proof; (b) the community's right to reimbursement for community investment in Husband's

1 1972 Chevelle, according to proof; (c) responsibility for tax obligations from before the date
2 of separation, according to proof; (d) characterization and apportionment of credit card
3 payments paid pursuant to Article 2.05(e), according to proof; and (e) computation of interest
4 paid to the Low Family Trust, according to proof.

5 d. Section 2.05(d) - Upon sale of Moscow Street, the following payments shall be made through
6 escrow: (1) commission and costs of sale; (2) mortgage held with San Francisco Fire Credit
7 Union; (3) HELOC held with San Francisco Fire Credit Union; and (4) \$90,000 principal
8 obligation owed to the Low Family Trust.

9 e. Section 2.05(e) - Upon sale of the Moscow Street, the other following obligations will be
10 paid, through escrow if possible, and if payment through escrow is not possible, from the
11 gross proceeds of sale before division by the parties: (1) interest due to the Low Family Trust
12 through July 31, 2021, less the \$11,400 in interest previously paid through year-end 2014; (2)
13 any outstanding tax obligations incurred prior to the date of separation; (3) loan against
14 Husband's deferred compensation account; and (4) credit cards for which both parties might
15 be held liable. The court reserves jurisdiction to allocate the debts paid in Article 2.05(e)
16 between the parties' community and separate obligations, as set forth in Article 2.07.

17 f. Section 2.05(f) - Upon payment of the items set forth in Article 2.05(d) and (e), the remaining
18 proceeds of sale will be divided equally by the parties.

19 g. Section 2.05(g) - Each party will report, for federal and state income tax purposes, half of the
20 total gain realized on the sale of the residence. If the parties are unable to exclude their gain
21 entirely under the Internal Revenue Code Section 121, then each party will determine his or
22 her net tax increase as a result, i.e., the difference between his or her total tax obligation in
23 the tax year for which the tax on the gain is paid and what it would have been had the gain
24 been deferred. The party having the smaller net tax increase will pay to the other, half of the
25 difference between the two net tax increases.

26 h. Section 2.05(h) - The court in the parties' dissolution action will reserve jurisdiction to make
27 such orders relating to sale of the family residence that are necessary to carry out this
28 agreement if the parties fail to cooperate or agree, including orders with respect to the sale
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process itself, provisions regarding the residence pending sale, disposition of proceeds, and tax consequences.

- 3) On for hearing is Wife's Request for Order filed 4/1/2026. Wife states that funds in the amount of \$200,000 have been held in an interest-bearing account by Hersh Family Law (Wife's former attorney) since July 2021. Wife states the balance is now approximately \$170,000 due to IRS levies and tax-related liabilities associated with the parties' 2016 taxes. Wife states the parties have made multiple efforts to determine how these funds should be distributed but, to date, no resolution has been reached. Wife requests distribution of the funds in equal amounts to each party.
- 4) On 5/27/2026, Husband filed a Responsive Declaration. Husband states the MSA reserved on several issues which require resolution before the trust account proceeds are distributed. As set forth below, Husband claims Wife owes him a total of \$33,072 from Wife's share of the trust account proceeds. These include:
- a. Wife's IRA Account (section 2.03(f) of the MSA) – Husband states he is entitled to one-half of the \$23,964 community balance of the IRA, and should receive \$11,982 from Wife's share of the trust account
 - b. Separate Property Contribution by Wife to Community Residence (section 2.07(a) of the MSA) – Husband states it has been 5 years since the MSA was executed and Wife has provided no documentation to prove a \$25,000 separate property contribution by Wife to the community residence (which was sold). Husband asks the Court to terminate jurisdiction over this issue.
 - c. Community Property Contribution to Husband's Separate Property 1972 Chevelle Automobile (section 2.07(b) of the MSA) – Husband states it has been 5 years since the MSA was executed and Wife has provided no documentation to prove Husband spent community funds on his separate property 1972 Chevelle automobile. Husband asks the Court to terminate jurisdiction over this issue.
 - d. Payments and Taxes Made After Date of Separation for Pre-Marital Income Tax Obligations (Section 2.07(c) of the MSA) – Husband states he paid \$22,180 from his separate

property to cover the parties' 2016 tax obligation, and should receive \$11,090 from Wife's share of the trust account

e. Credit Card Payments Made from Escrow (section 2.07(d) of the MSA) – Husband states the MSA reserves jurisdiction over the “characterization and apportionment of the credit card payments paid from escrow on sale of the family home, according to proof.” Husband states no credit card payments were made from escrow. Husband asks the Court to order each party to pay any and all credit card obligations in that party's respective name and indemnify the other party against any enforcement by creditors against the other party.

f. Interest Owing to Low Family Trust (section 2.07(e) of the MSA) – Husband states the MSA reserves jurisdiction to compute the interest owing to the Low Family Trust. Husband states the Low Family Trust was paid \$24,300 in interest out of escrow of the sale of the family home. Husband asks the Court to terminate jurisdiction over this issue.

g. Personal Property (sections 2.02(h) and 2.03(g) of the MSA) – Husband states the MSA reserves jurisdiction to divide personal property between the parties. Husband estimates that Wife removed \$25,000 worth of household furniture, furnishings, fixtures, etc. from the family residence prior to sale and requests Wife to reimburse him \$10,000 from Wife's share of the trust account.

h. Potential Tax and Penalty Liability for Husband's Amended Tax Return for 2021 (section 2.05(g) of the MSA) Husband states Wife has failed to provide documentation to show the total cost of improvements made to the family residence. Husband intends to amend his “2021 income tax returns for sale of the residence,” and would like the Court to retain jurisdiction to order Wife to indemnify Husband in the event his amended 2021 income tax returns are audited and unpaid taxes and penalties are due based on Wife's inability to prove the improvements to the residence.

5) On 5/28/2026, Wife filed a Reply Declaration. Wife did not respond to the specific issues outlined in Husband's Responsive Declaration. Instead, she reiterates her request that the Court order the immediate equal division and release of the remaining escrow funds currently being held “rather than continue revisiting and re-litigating historical disputes dating back many years.” In the alternative, Wife requests the Court to “equitably consider the fact that the original escrow

1 balance was approximately \$200,000 before substantial depletion caused by IRS levies and
2 unresolved community property related debt.”

3 6) At the prior 6/9/2026 hearing, the Honorable Judge Chan made the following orders (per the
4 Findings and Order After Hearing filed 6/11/2026):

5 a. Judge Chan set a future hearing date of 7/14/2026 and ordered the parties to meet and confer
6 regarding Husband’s proof of the character and value of Wife’s IRA account and payments of
7 the post-separation payroll deductions. If there is no dispute, the parties were ordered to
8 notify the Court prior to the next hearing of their agreement. If there is a dispute, Husband
9 was ordered to submit his supporting evidence to prove-up his claims.

10 b. Judge Chan noted that, pursuant to the MSA Article 2.07, the proceeds from the sale of the
11 Moscow Street property are being held to provide a “mechanism to ensure that any debts for
12 which both parties might be held liable are paid.” Judge Chan noted it has now been almost
13 five years since Judgment was entered and stated the Court’s intent to grant Wife’s request to
14 release the funds held by Hersh Family Law on the condition that the payments required by
15 Article 2.05(d) of the MSA have been paid (commission and costs of sale, mortgage held
16 with San Francisco Fire Credit Union, HELOC held with San Francisco Fire Credit Union,
17 and \$90,000 principal obligation owed to Low Family Trust), and to thereafter divide the
18 funds equally.

19 7) On 6/22/2026, Wife filed a declaration. Wife requests that the Court decline to apply the
20 requested offsets, reimbursements, or reductions against her share of the remaining trust funds
21 unless and until Husband provides competent evidence establishing: (a) the purpose and use of
22 the \$30,000 Prudential deferred compensation loan proceeds; (b) the specific tax years,
23 assessments, and liabilities that resulted in the levy against the trust funds; (c) a complete
24 accounting showing how approximately \$200,000 originally held in trust was reduced to the
25 current balance; and (d) the basis for any claim that such obligations should properly be charged
26 against Wife’s share of the remaining community property funds. Wife further requests that the
27 Court equitably divide the remaining community property funds only after all claims, offsets,
28 reimbursements, and obligations have been properly established and supported by admissible
29 evidence.

1 a. IRA Withdrawals: Wife states Husband is not entitled to a reimbursement for amounts she
2 withdrew from community Fidelity IRA or Merrill Edge IRA accounts because those funds
3 were “used for community and family obligations, including mortgage payments, property
4 taxes, homeowner expenses, and our daughter’s private school tuition” after Husband moved
5 out of the family residence or about April 2018.

6 b. Prudential Deferred Compensation Loan: Wife acknowledges that the Prudential loan was
7 obtained during marriage and prior to separation. Wife states that based upon her knowledge
8 and recollection of the parties’ financial circumstances at the time, there was no need for an
9 additional \$30,000 loan for community or family purposes and she states Husband’s
10 documents do not establish how the loan proceeds were used or whether they were used for a
11 community purpose. Therefore, Wife does not agree to Husband’s request for reimbursement
12 for this loan solely because loan repayments were deducted from his paycheck after
13 separation.

14 c. Tax Liabilities: Wife states that the parties did not file joint tax reruns after the parties
15 separated in 2018. Wife states she does not know what actions Husband took with respect to
16 his tax obligations after the parties’ separation. Wife states that Husband has not provided the
17 specific tax years giving rise to the levy, the nature of the assessments, or whether the
18 liabilities arose before or after separation. Wife state that she is therefore unable to determine
19 whether the claimed offset relates to Husband’s separate obligations or whether any portion
20 constitutes a community obligation.

21 8) On 6/29/2026, Husband filed a declaration stating that he is entitled to \$12,900 as an offset
22 against the amount Wife withdrew from community IRA accounts post-separation. Husband
23 states Wife owes him \$11,090 for post-separation payments for the deferred compensation loan.
24 Husband acknowledges that the \$9,272.04 seized by the Franchise Tax Board from the client
25 funds account should be attributed to him and act as an offset against what Wife owes him.
26 Husband states, “This results in me receiving \$14,717.96 from Vicky’s share of the client funds
27 account. Thus, based on the May 31, 2026 balance of \$172,917.95 Vicky should receive
28 \$71,739.51 and I should receive \$101,175.43.”
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1 9) On 6/29/2026, Husband's attorney Ann Riley filed a declaration wherein she states: "Ms. Low
2 claims that she should not be charged with any portion of the community property deferred
3 compensation plan loan because she claims she does not know how the proceeds were used. She
4 further claims that she should not be charged with the post-separation liquidation of the two IRA
5 accounts because she spent the money on expenses which she would attribute to the community.
6 She has provided no evidence to substantiate either of these claims. Further, she has not
7 responded to my meet and confer efforts where I detailed the result of my calculations."

8 **B. Findings and Order**

- 9 1) The Court finds Wife did not meet her burden to prove that post-separation withdrawals from
10 community property IRA accounts were used to pay for community obligations. Husband's
11 request for a \$12,900 offset, for his one-half share of these withdrawals, is granted.
- 12 2) Husband's request for Wife to pay him one-half of the post-separation payroll deductions for the
13 Prudential loan in the amount of \$11,090 is granted. The Prudential loan was taken out before the
14 parties' date of separation and is presumptively a community debt. The Court does not find that
15 Wife rebutted the community debt presumption.
- 16 3) Husband's request to terminate jurisdiction over Wife's potential \$25,000 separate property
17 reimbursement is DENIED.
- 18 4) Husband's request to terminate jurisdiction over a potential reimbursement of community funds
19 used to purchase Husband's separate property 1972 Chevelle is DENIED.
- 20 5) Husband's request that each party pay any and all credit card obligations in that party's respective
21 name, and indemnify the other party against any enforcement by creditors against the other party
22 of the named party's credit card obligations is GRANTED.
- 23 6) Husband's request to terminate jurisdiction over interest paid to the Low Family Trust is
24 GRANTED. The Low Family Trust was paid \$24,300 in interest out of escrow of the sale of the
25 family home.
- 26 7) Husband's request for reimbursement in the amount of \$10,000 as final settlement of the division
27 of tangible personal property is DENIED WITHOUT PREJUDICE. There is insufficient proof.
- 28 8) Pursuant to the MSA Article 2.07, the proceeds from the sale of the Moscow Street property are
29 being held to provide a "mechanism to ensure that any debts for which both parties might be held

liable are paid.” It has now been almost five years since Judgment was entered. Wife’s request to release the funds held by Hersh Family Law is GRANTED, as set forth below, on the condition that the payments required by Article 2.05(d) of the MSA have been paid (commission and costs of sale, mortgage held with San Francisco Fire Credit Union, HELOC held with San Francisco Fire Credit Union, and \$90,000 principal obligation owed to Low Family Trust).

9) Husband’s request that the following amounts be awarded as offsets to him against the balance held in the Hersh Family Law trust account is granted:

a. \$12,900 as an offset against the amount Wife withdrew from community IRA accounts post-separation

b. \$11,090 for Husband’s post-separation payments for the Prudential loan

10) Wife shall receive an additional \$9,272.04, which Husband admits should be awarded to Wife as an offset against the amount seized by the Franchise Tax Board from the client funds account,

11) Therefore, assuming the following costs have been paid (commission and costs of sale, mortgage held with San Francisco Fire Credit Union, HELOC held with San Francisco Fire Credit Union, and \$90,000 principal obligation owed to Low Family Trust) and assuming the trust account balance is \$172,917.95, Husband shall receive $(\$172,917.95 / 2) + \$12,900 + \$11,090 - \$9,272.04 = \$101,176.94$ from the Hersh Family Law trust account and Wife shall receive $(\$172,917.95 / 2) - \$12,900 - \$11,090 + \$9,272.04 = \$71,742.01$. These amounts shall be distributed to each party as soon as practicable.

12) Husband’s attorney shall prepare the Findings and Order After Hearing.

13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HILL M PASHALIDES,

Petitioner

VS.

JEFFREY T PASHALIDES,

Respondent

) Case Number: FDI-20-793829

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CUSTODY, REITERATE EXISTING CUSTODY
ORDERS; SEE NO. 7; MOTION (FAMILY LAW GENERIC) CHANGE OF VENUE .

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Hill Pashalides (Mother) and Jeffery Pashalides (Father) have two minor children, Jason (DOB 3/29/2009, age 17) and Taylor “Pallas” (DOB 3/5/2012, age 14). Mother lives in Marin County and Father lives in Sacramento.
- 2) On 2/1/2024, the Court issued a Statement of Decision (SOD) after a long-cause hearing on custody and parenting time. This order provides for, in relevant part, joint legal and joint physical custody with parenting time for Father on the 1st, 3rd, and 4th weekends of each month.
- 3) On 2/13/2025, Mother filed a request seeking modification of the custody and parenting time order. Father opposed the request, stating there was no change in circumstances warranting modification. The parties agreed at mediation to modify the Summer 2025 schedule. After a hearing on 7/3/2025, Judge Anne Costin granted in part and denied in part Mother’s request, confirmed the order set forth in the SOD for the parties to attend co-parenting counseling, and

ordered that neither parent shall suggest or discuss potential travel or events with the children that fall outside of their own respective custodial time.

4) Now on for hearing is Father's 3/6/2026 request seeking the following: (1) reiterate the existing orders on custody schedule changes and attending co-parenting counseling, as Mother repeatedly has violated orders on these matters; (2) enter as an order Father's proposed written policy documents (see Exhs. A & B); (3) order Mother to reimburse Father for his attorney fees in bringing this request; (4) order Mother to pay \$5,000 in sanctions for each of the five times (see Exh. C) he believes she has willingly violated this Court's orders, or a sum of \$25,000; and (5) provide Mother notice that a future sanction of \$10,000 per violation will be imposed. Father states that Pallas (the younger child) attempted suicide after Mother's most recent violation of involving the children in unilaterally changing the custody schedule. Father states that Mother has also violated the order for the parties to attend co-parenting counseling.

5) Also on for hearing is Mother's 4/16/2026 motion to change venue to Marin County. Mother states both the children have gone through significant challenges, and that timeshare changes might result due to their preferences and other factors such as outpatient programs, college, and summer school. Mother states, based on the current situation, changing venue to the Marin Superior Court would reduce fees and stress and allow her to focus on the children. Mother has filed a Memorandum of Points and Authorities in support of her motion. She asserts, under Code of Civil Procedure sections 397(c) and 397.5, "the convenience of witnesses and the ends of justice would be promoted" by the change in venue to Marin County. Mother states the crucial "third-party percipient witnesses" are "teachers, experts, Pallas's crisis care, inpatient/outpatient treatment and healthcare providers, Jason's ADHD coach, therapist and college counselor, as well as the teenage children" in Marin County.

6) On 6/24/2026, Mother filed a response to Father's request in which she opposes his requests and disagrees with the statements he has made about co-parenting counseling and other matters. She states that co-parenting counseling is not necessary because she and Father have been able to effectively share custody. Mother states that Father does not carry the same burden she does in caring for the children, as he is a "weekend and summer parent." According to Mother, Father has been punitive when the children's choices "challenge his control"; she states Father should

foresee that the 2024 and 2025 Court orders were made when the “children were younger, not high school students.”

- 7) On 6/30/2026, Father filed a response to Mother’s motion to change venue. He states he does not oppose the motion but would like his 3/6/2026 request to be adjudicated by this Court before the case is transferred.
- 8) On 7/7/2026, Mother filed a reply stating there would be confusion and conflict if this Court were to issue orders before the case is transferred. Mother asks the Court to deny Father’s request for co-parenting counseling, as Father’s goal appears to be “only to use the platform to criticize [her], not for parenting or to make decisions.”
- 9) On 7/7/2026, Father filed a reply stating Mother lacks authority to modify Court orders, especially the orders mandating co-parent counseling and the parents' collaboration in custody schedule changes.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.
- 2) The Court hereby grants Mother’s motion to change venue to Marin County. Mother shall open a case in Marin County as soon as possible. Mother shall be solely responsible for any and all fees for opening a new case in Marin County and for any fees to transfer the case file to Marin County. A review hearing is set for **Tuesday, 9/29/2026 at 9:00 AM in Dept. 404** for the sole purpose of determining Mother’s compliance with these orders. At least 10 calendar days prior to the next hearing date, Mother shall file and serve a declaration explaining whether she was able to transfer this case to Marin County and she shall attach documentary proof of her statements.
- 3) The Court finds it is in the children’s best interests to maintain all current orders pending the transfer. The parties are reminded that there are current orders in place, including orders for co-parenting counseling and other conduct orders, which they must follow until and unless they obtain a different order from the Court.

- 1 4) Father's requests for sanctions and other conduct orders are denied without prejudice to the filing
2 of such requests in Marin County once the venue transfer is complete.
- 3 5) Mother's attorney shall prepare the Findings and Order After Hearing.
- 4 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARILICE SANTOS DA BIENVENU,

Petitioner

VS.

ALEXANDRE PHILLIPE PAUL BIENVENU,

Respondent

) Case Number: FDI-21-794491

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, the Court intends to adopt the following findings and orders, absent good cause shown.

A. Procedural History

- 1) The parties are Petitioner Marilice Santos de Bienvenu (Mother) and Respondent Alexandre Phillipe Paul Bienvenu (Father). Mother lives in Brazil. Father lives in France (but previously lived in San Francisco). The parties have one minor child, Kuane (DOB: 12/2/2015, age 9). Both parties are currently self-represented.
- 2) On 2/17/2021, Mother filed a Petition for Dissolution.
- 3) On 9/9/2024, Father filed a Response and Request for Dissolution.
- 4) The Court has made the following orders in this matter to date:

- a. Per the Findings and Order After Hearing filed 10/20/2024, the Court set aside Father's default previously entered on 12/16/2021 as well as a True Default Judgment entered on 2/6/2023.
 - b. Per the Findings and Order After Hearing filed 2/11/2025, the Court ordered Father to pay Mother \$450 per month in child support and \$300 per month in temporary spousal support.
- 5) On 11/18/2025, Father filed Request for Order asking this Court to relinquish jurisdiction over custody, visitation, spousal support, child support, and property division "in favor of the Brazilian courts as the appropriate forum," vacate as void all orders "arising from improper service and lack of jurisdiction, including the February 11, 2025 support order," and dismiss all proceedings in California to prevent duplicative litigation and protect the child's welfare.
- 6) Per the Proof of Service filed 3/13/2026, Father's Request for Order, blank Responsive Declaration, and Tentative Ruling Instructions were mailed to Mother at the Oregon address the Court has on file for Mother (Mother has never filed a Notice of Change of Address to date) as well as an address in Brazil.
- 7) Mother did not file a Responsive Declaration.
- 8) At the prior 4/2/2026 hearing, Father appeared but Mother did not. The Court adopted its Tentative Ruling without objection and made the following findings and orders the following:
 - a. The Court noted that in Mother's Petition for Dissolution and Father's Response and Request for Dissolution, both parties stated the minor child has been living in Brazil since 2016. This Court found that the state of California does not have jurisdiction to make custody and visitation orders under the Uniform Child Custody Jurisdiction and Enforcement Act as California is not the child's home state. This Court also noted it has made no custody and visitation orders to date.
 - b. The Court found that both parties submitted to the Court's jurisdiction over child and spousal support by filing a Petition, Response, Request for Order seeking child and spousal support, and Responsive Declaration opposing child and spousal support in this Court. The Court did not find that the current child and spousal support orders are void or

1 invalid and instead found they shall remain in full force and effect, subject to registration,
2 enforcement, and modification in Brazil.

3 c. The Court granted Father's unopposed request and found that Brazil is the more
4 convenient forum to make orders regarding custody, visitation, and property division, and
5 to enforce and modify the current child and spousal support orders under Code of Civil
6 Procedure section 410.30.

7 d. The Court ordered Father to immediately open a family law case in the appropriate venue
8 in Brazil where Mother resides and to register the current child and spousal support
9 orders in that Brazilian case.

10 e. The Court set a review hearing for Father for 7/14/2026 to demonstrate full compliance
11 with these orders, and the Court noted it would consider staying or dismissing this case if
12 the Court finds Father in compliance with these orders.

13 f. The Court ordered Father to file and serve a declaration which includes documentary
14 evidence showing compliance with the Court's orders at least 20 calendar days prior to
15 the next hearing date.

16 g. The Court ordered Mother to file and serve a declaration if she has any relevant updates
17 for the Court at least 10 calendar days prior to the next hearing date.

18 9) On 6/24/2026, Father filed a declaration and an amended declaration wherein he attaches a
19 declaration by his Brazilian attorney Flavia Marinho do Rosario who states that a Petition has
20 been prepared for filing but has not yet been filed due to temporary unavailability of the
21 electronic filing system in Brazil.

22 10) Per the Proof of Service filed 7/6/2026, Father's declaration was mailed to the Oregon address the
23 Court has on file for Mother on 6/24/2026.

24 11) On 7/9/2026, Father filed a declaration in which he states that a Brazilian action was filed on
25 6/29/2026, Case No. 8021817-59.2026.8.05.0150. Attached to Father's declaration is a
26 declaration by Father's Brazilian attorney Flavia Marinho do Rosario who states: that the initial
27 petition in the Brazilian action includes a request to "assess" current alimony orders including
28 Father's child support obligation of \$450 per month and temporary spousal support of \$300 per
29 month. Father's declaration also includes as an attachment documents which appear to show that

1 an action was commenced in Brazil on 6/29/2026. Ms. Marinho do Rario's declaration as well as
2 various attachments are attached Portuguese with an English translation. There is also a
3 declaration by Liam Gallagher who attests that he performed the translations and the he is a
4 translator certified by the American Translators Association for Portuguese into English.

5 12) Per the Proof of Service filed 7/9/2026, Father's declaration was mailed to the Oregon address the
6 Court has on file for Mother on 6/24/2026

7 **B. Findings and Order**

- 8 1) The Court finds that Father has complied with the Court's orders made at the 4/2/2026 hearing
9 requiring him to open a family law case in Brazil. The Court also finds that Father has notified
10 the Brazilian court about the child and spousal support orders previously made by this Court.
- 11 2) The Court finds good cause to stay this action under Code of Civil Procedure section 410.30. The
12 Court defers to the jurisdiction of Brazil to make orders regarding custody, visitation, property
13 division, and to modify or enforce the child support and temporary spousal support orders
14 previously made by this Court.
- 15 3) The Court will only lift the stay in this action upon good cause shown.
- 16 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DY NGUYEN,	)	Case Number: FDI-24-799785
	)	
Petitioner	)	Hearing Date: July 14, 2026
	)	
VS.	)	Hearing Time: 9:00 AM
	)	
JENNIFER FOXWORTH,	)	Department: 404
	)	
Respondent	)	Presiding: AI MORI
	)	

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR
PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Dy Nguyen and Respondent Jennifer Foxworth married on 7/29/2013. Petitioner contends the parties separated on 8/4/2024, for a marriage of 10 years. Respondent contends the parties separated on 6/24/2023, for a marriage of 9 years and 10 months. The parties have two minor children, Mazzi (DOB: 2/21/2016, age 10) and Enzo (DOB: 1/6/2018, age 8). Petitioner is self-represented, although Petitioner has a consulting attorney (Janice Cho). Respondent is represented by attorney Nancy Lawlor.
- 2) On for hearing is Petitioner’s 4/15/2026 request seeking joint legal and joint physical custody of the children and to formalize the following parenting time schedule that she states has been in place for 2 years: Monday to Tuesday with Petitioner, Wednesday to Thursday with Respondent, and alternating weekends. (She states she had a larger timeshare than Respondent before the parties agreed to a 50/50 schedule.) Petitioner also seeks guideline child support, an order to share child support add-ons, temporary guideline spousal support, a Smith / Ostler child and temporary

1 spousal support, and an earnings assignment order. Petitioner states that, to date, Respondent has
2 been paying her \$1,500 per month in voluntary “family support.”

- 3 3) On 5/6/2026, Respondent filed a response in which she seeks an order for Petitioner to have
4 parenting time on alternate weekends only, from Friday school pick up (or 3PM if no school) to
5 Sunday at 6PM. She states that Mazzi has been diagnosed with being on the autism spectrum and
6 has suffered severe anxiety since staying with Petitioner, her new partner Monica, and Monica’s
7 two young boys who often stay overnight. Respondent states that Enzo reported that Petitioner
8 “pinches” her so hard it “really hurts” and that Petitioner admitted this conduct by text.
9 Respondent states that Petitioner also has a long history of “erratic mental health issues” and
10 attended an outpatient program regarding her mental issues in early 2024. Respondent states that
11 Petitioner invests her attention and time on Monica’s issues, which she believes causes the
12 parties’ children to suffer. Respondent agrees to guideline child with mutual Smith / Ostler
13 orders. Respondent states that while her total annual income usually exceeds Petitioner’s,
14 Petitioner’s base monthly income exceeds Respondent’s. Respondent states she paid Petitioner
15 \$750 on 5/1/2026 “though this amount can be adjusted as this was from a previous XSpouse that
16 was shared a month or more ago.” Respondent states she does not agree to pay temporary spousal
17 support because “[Petitioner] did not support me during marriage while I worked, we both
18 worked and cared for our children. In fact, I cared for them while she had to go to outpatient care
19 for her mental health and there are instances of domestic violence against me when she smashed
20 pots and hit me in a fit of rage. She earns as much if not more than I as to base pay, and
21 additionally, she has had ample funds than I have to travel constantly all over the world the last
22 two years.” Respondent questions why Petitioner is no longer working during the summer.
- 23 4) On 5/6/2026, Respondent filed an Income and Expense Declaration. Respondent states she is 42
24 years old and is a Police Sergeant / Investigator. Respondent states that she earns \$16,516 on
25 average per month in base pay, plus \$7,241 on average per month for overtime pay. Respondent
26 states her monthly expenses total \$10,646.
- 27 5) On 6/26/2026, Petitioner filed an Income and Expense Declaration. Petitioner states she is 43
28 years old and is a Special Education Teacher. Petitioner states that over the course of 12 months,
29 she earns on average \$13,315.97 per month, plus an average of \$2,340.48 per month in overtime.

Petitioner states she is earning \$656.40 per month from an employer-paid medical stipend, which will end on 9/30/2026. Petitioner states her monthly expenses total \$9,577.

- 6) On 6/26/2026, Petitioner filed a reply in which she states she voluntarily attended an outpatient program and that there is nothing in the record or in the history of the parties' relationship or her time with the children that supports ordering a different parenting time schedule than what the parties have been following for the last 2+ years. Petitioner states that Mazzi was diagnosed with general anxiety disorder before the parties separated; her anxiety was not caused by Petitioner's relationship with Monica, who does not live in Petitioner's home. Petitioner states that she believes Respondent's requests and statements are made in retaliation because she is unhappy that Petitioner decided to seek Court orders after mediation efforts failed. Petitioner specifies that she would like Respondent's "very recent predictable overtime as a Sergeant... included with her Base Wages in the X-Spouse Calculation." Respondent states she has worked summer assignments some years, but not others, and summer school is "optional and not guaranteed." Petitioner explains that her cash-in-lieu medical benefit that she currently receives will end on 10/1/2026 because the parties recently agreed to move the children to Petitioner's health insurance effective 10/1/2026. Petitioner also states Respondent's base pay is higher than Petitioner's base pay.
- 7) On 6/26/2026, Petitioner filed a Statement of Support Calculations. Petitioner requests support orders retroactive to 4/15/2026 (the date she filed her Request for Order).
- 8) The parties reached a partial agreement at mediation. On 7/2/2026, a Stipulation and Order was filed reflecting the partial agreement for joint legal and joint physical custody and other agreements including passport exchanges, medical decisions, usage of a shared calendar, holiday and break schedules, communication regarding new partners, and decisions regarding the children's schools.
- 9) On 7/7/2026, Respondent filed a Statement of Support Calculations.
- 10) On 7/7/2026, Respondent filed a Sur-Reply to Petitioner's Reply. Among other arguments made, Respondent states that her overtime is not predictable nor guaranteed, and expects the mayor to slash overtime for the police force. Respondent also states that her base wages will increase by \$3,000 gross annually commencing 7/1/2026, to bring her total gross base to \$217,748 per year.

Respondent states she will agree to “Bridge Forensics XSpouse inputs at Exhibit 5 of Petitioner’s Support calculations... along with a dual Ostler / Smith order for other income, or alternatively, with one change being that my base wages will now be an annual gross income of \$217,748, not \$214,579.” Respondent asks that there be a quarterly true-up of income for Ostler / Smith. Respondent also states there is no retroactive support due because the \$1,500 per month between 8/2024 – 4/2026 and \$750 per month commencing May 2026 that she was paying in voluntary family support is more than the base support due and “included a general amount for all my other income.”

B. Findings and Order

1) Custody and Visitation

- a. This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.
- b. The Court finds it is in the children’s best interests to maintain the current order for joint legal and 50/50 physical custody to the parties, with Mondays and Tuesdays to Petitioner, Wednesdays and Thursdays to Respondent, and alternating weekends between the parties. The parties shall meet and confer and agree in writing (text message or email is acceptable) to the specific times and locations of the exchanges and may call Family Court Services at (415) 238-3623 if they need assistance in agreeing to the specific times and locations of the exchanges.
- c. The parties shall not use physical discipline to discipline the children.

2) Base Child and Spousal Support

- a. Petitioner’s request for child and temporary spousal support orders effective 4/15/2026 (the date Petitioner filed her Request for Order) is hereby granted.
- b. Petitioner’s request to include Respondent’s overtime pay in the base support calculation is denied. The Court instead adopts the alternative XSpouse inputs proposed in Exhibit 5 of Petitioner’s Statement of Support Calculations filed 6/26/2026 and in Respondent’s Statement of Support Calculations filed 7/7/2026.

- 1 c. For the period 4/15/2026 – 6/30/2026, in accordance with the XSpouse calculation
2 attached hereto and incorporated herein, Respondent shall pay Petitioner \$447 per month
3 in guideline child support and \$0 in temporary spousal support.
- 4 d. Effective 7/1/2026 (when Respondent's raise goes into effect), in accordance with the
5 second XSpouse calculation attached hereto and incorporated herein, Respondent shall
6 pay Petitioner \$466 per month in guideline child support and \$0 in temporary spousal
7 support. Base child support shall be paid by the 5th of each month.
- 8 e. If Respondent has already paid Petitioner \$750 for base child support for the month of
9 July 2026, Respondent shall receive a credit towards base child support in the amount of
10 \$750 - \$466 = \$284 for the month of August 2026.

11 3) Child Support Add-Ons

- 12 a. After Respondent pays base child support to Petitioner, Respondent will have 53% of the
13 parties' combined net spendable base income and Petitioner will have 47% of the parties'
14 combined net spendable base income. For ease of calculation, effective 4/15/2026, the
15 parties shall share equally the following child support add-ons:
- 16 i. Childcare costs as defined by Family Code Section 4062(a)(1)
17 ii. Reasonable uninsured healthcare costs for the children
18 iii. The costs of mutually agreed upon extracurricular activity expenses for the
19 children. Consent for the children to participate in an activity shall not be
20 unreasonably withheld.
- 21 b. The procedure for requesting and paying reimbursements for uninsured healthcare costs
22 for the children shall be as set forth in Judicial Council Form FL-192.
- 23 c. The procedure for requesting and paying reimbursements for qualifying childcare costs
24 and extracurricular activities shall be as follows. When a party (e.g. Party A) pays for a
25 qualifying expense, within 30 days of paying the expense, Party A shall present to Party
26 B: (a) an itemized statement of charges, (b) proof of payment, and (c) the amount due and
27 owing from Party B. Within 10 days of receiving this information, Party B shall submit a
28 payment to Party A for Party B's share of the expense.
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1 2) Smith / Ostler Child and Temporary Support

- 2 a. For the period 4/15/2026 – 6/30/2026, in addition to base child and temporary spousal
- 3 support, the parties shall pay a portion of all additional gross income (e.g., overtime pay,
- 4 bonuses, summer instruction income) received in excess of their base salary, pursuant to the
- 5 Bonus Tables attached the first XSpouse calculation.
- 6 b. Effective 7/1/2026, in addition to base child and temporary spousal support, the parties shall
- 7 pay a portion of all additional gross income (e.g., overtime pay, bonuses, summer instruction
- 8 income) received in excess of their base salary, pursuant to the Bonus Tables attached the
- 9 second XSpouse calculation.
- 10 c. The parties shall perform a quarterly true-up to determine Smith / Ostler child and temporary
- 11 spousal support due and owing between the parties. Commencing 7/15/2026, and thereafter
- 12 on January 15th, April 15th, July 15th, October 15th of each year, the parties shall exchange
- 13 documents showing all income received in the immediately preceding three months and the
- 14 parties shall meet and confer to determine what amount in Smith / Ostler child and temporary
- 15 spousal support, if any, is due and owing between the parties. The parties shall aim to pay any
- 16 Smith / Ostler child and temporary spousal support due and owing between the parties no
- 17 later than January 31st, April 30th, July 31st, and October 31st.

18 3) Child and Temporary Spousal Support Arrears and Credits for the Period 4/15/2026 – 6/30/2026

- 19 a. No later than 7/15/2026, the parties shall exchange all documents showing all income
- 20 received for the period 4/15/2026 – 6/30/2026 as well as all reimbursement claims regarding
- 21 child support add-ons (as defined above) incurred during this period. The parties shall meet
- 22 and confer to determine what support arrears or credits may be owed by either party for this
- 23 period. Respondent shall receive a credit for any payments she made to Petitioner in
- 24 voluntary support paid between 4/1/2026 – 6/30/2026. Respondent shall receive a credit for
- 25 any support overpayments to Petitioner paid between 4/1/2026 – 6/30/2026, and the parties
- 26 shall meet and confer to determine how Respondent shall be reimbursed for the overpayment.

- 27 4) Respondent's attorney shall prepare the Findings and Order After Hearing, which shall include as
- 28 attachments a mandatory FL-342 form, two XSpouse calculations, both sets of Bonus Tables, and
- 29 the FL-192 form.

1 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Party A	Party B	Monthly figures		Cash Flow		
#of children	0	2	2026			Guideline	Proposed
% time with NCP	49.99 %	0.00 %			Comb. net spendable	20122	20122
Filing status	HH/MLA	HH/MLA	GUIDELINE		Percent change	0%	0%
# exemptions	2	2	Nets(adjusted)		Party A		
Wages+salary	13365	17882	Party A	9023	Payment cost/benefit	447	447
Self-employed income	0	0	Party B	11099	Net spendable income	9470	9470
Other taxable income	0	0	Total	20122	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	47%	47%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	447	Total taxes	2672	2672
401(k) employee contrib	550	1300	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	447	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	8732	8732
CS paid prev marriage	0	0	Settings changed		Party B		
Health insurance	0	0			Payment cost/benefit	-447	-447
Other medical expense	0	0			Net spendable income	10652	10652
Property tax expense	924	0			Change from guideline	0	0
Ded interest expense	1847	0	Proposed		% of combined spendable	53%	53%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	447	Total taxes	4322	4322
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	140	0	Total	447	# withholding allowances	0	0
Mandatory retirement	1530	2461	Saving	0	Net wage paycheck	10704	10704
Hardship deduction	0 *	0 *	Releases	0			
Other GDL deductions	0	0					
Child care expenses	0	0					

Party B pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(A)	cce(B)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Party A	447	Party B	447	Party B
Mazzi	49 - 51	0	0	0	Party A	167	Party B	167	Party B
Enzo	49 - 51	0	0	0	Party A	279	Party B	279	Party B

Annual Bonus Income

Party_A

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Party_B: 0
Prior relationship(s): OFF

Additional Cost to Party_A

Party_A's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0	0
5,000	13.78	689	0.00	0	4,669 R	0
10,000	13.72	1,372	0.00	0	3,986 R	0
15,000	13.54	2,031	0.00	0	3,327 R	0
20,000	13.41	2,683	0.00	0	2,675 R	0
25,000	13.37	3,342	0.00	0	2,016 R	0
30,000	13.50	4,050	0.00	0	1,308 R	0
35,000	13.58	4,752	0.00	0	606 R	0
40,000	13.62	5,448	0.00	0	90	0
45,000	13.62	6,130	0.00	0	772	0
50,000	13.61	6,807	0.00	0	1,448	0
55,000	13.60	7,479	0.00	0	2,121	0
60,000	13.58	8,146	0.00	0	2,788	0
65,000	13.55	8,809	0.00	0	3,451	0
70,000	13.52	9,467	0.00	0	4,109	0
75,000	13.50	10,122	0.00	0	4,763	0
80,000	13.46	10,772	0.00	0	5,414	0
85,000	13.43	11,418	0.00	0	6,060	0
90,000	13.40	12,060	0.00	0	6,702	0
95,000	13.37	12,699	0.79	755	7,341	755
100,000	13.33	13,334	1.54	1,543	7,976	1,543
105,000	13.30	13,966	2.22	2,333	8,608	2,333
110,000	13.27	14,594	2.84	3,127	9,236	3,127
115,000	13.23	15,220	3.41	3,923	9,861	3,923
120,000	13.18	15,811	3.90	4,683	10,453	4,683
125,000	13.09	16,363	4.32	5,397	11,004	5,397
130,000	13.01	16,912	4.70	6,114	11,554	6,114
135,000	12.93	17,459	5.06	6,833	12,101	6,833
140,000	12.86	18,004	5.40	7,553	12,646	7,553
145,000	12.79	18,547	5.71	8,276	13,189	8,276
150,000	12.72	19,087	6.00	9,000	13,729	9,000
155,000	12.66	19,626	6.28	9,727	14,268	9,727
160,000	12.60	20,162	6.53	10,455	14,804	10,455
165,000	12.54	20,697	6.78	11,185	15,339	11,185
170,000	12.49	21,230	7.01	11,916	15,871	11,916
175,000	12.43	21,760	7.23	12,649	16,402	12,649
180,000	12.38	22,283	7.43	13,375	16,924	13,375
185,000	12.32	22,786	7.61	14,078	17,428	14,078
190,000	12.26	23,287	7.78	14,782	17,929	14,782
195,000	12.20	23,787	7.94	15,487	18,429	15,487
200,000	12.14	24,286	8.10	16,194	18,927	16,194

Annual Bonus Income

Party_B

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Party_A: 0
Prior relationship(s): OFF

Additional Cost to Party_B

Party_B's Bonus	Child Support		Spousal Support		Total CS	Total SS
	% of bonus	\$	% of bonus	\$		(adjusted)
0	0.00	0	0.00	0	0 R	0 R
5,000	13.07	654	4.51	226	6,012	226
10,000	13.02	1,302	9.48	948	6,660	948
15,000	12.97	1,946	11.17	1,676	7,304	1,676
20,000	12.92	2,584	12.03	2,407	7,943	2,407
25,000	12.88	3,219	12.57	3,142	8,577	3,142
30,000	12.83	3,849	12.94	3,882	9,207	3,882
35,000	12.78	4,475	13.21	4,625	9,833	4,625
40,000	12.74	5,096	13.43	5,372	10,454	5,372
45,000	12.70	5,714	13.60	6,122	11,072	6,122
50,000	12.66	6,328	13.75	6,876	11,686	6,876
55,000	12.62	6,938	13.88	7,633	12,296	7,633
60,000	12.48	7,491	13.87	8,324	12,849	8,324
65,000	12.34	8,018	13.83	8,990	13,376	8,990
70,000	12.20	8,543	13.80	9,658	13,901	9,658
75,000	12.09	9,065	13.77	10,329	14,423	10,329
80,000	11.98	9,585	13.75	11,002	14,943	11,002
85,000	11.89	10,102	13.74	11,676	15,460	11,676
90,000	11.80	10,618	13.73	12,353	15,976	12,353
95,000	11.72	11,131	13.72	13,032	16,489	13,032
100,000	11.64	11,642	13.71	13,713	17,000	13,713
105,000	11.57	12,151	13.71	14,395	17,509	14,395
110,000	11.51	12,657	13.71	15,080	18,015	15,080
115,000	11.43	13,140	13.68	15,735	18,498	15,735
120,000	11.35	13,622	13.66	16,394	18,980	16,394
125,000	11.30	14,129	13.67	17,092	19,487	17,092
130,000	11.26	14,635	13.69	17,792	19,993	17,792
135,000	11.21	15,139	13.70	18,494	20,497	18,494
140,000	11.17	15,641	13.71	19,197	21,000	19,197
145,000	11.13	16,142	13.73	19,902	21,500	19,902
150,000	11.09	16,641	13.74	20,608	21,999	20,608
155,000	11.06	17,138	13.75	21,316	22,496	21,316
160,000	11.02	17,634	13.77	22,025	22,992	22,025
165,000	10.99	18,128	13.78	22,736	23,486	22,736
170,000	10.95	18,620	13.79	23,448	23,978	23,448
175,000	10.92	19,111	13.81	24,161	24,469	24,161
180,000	10.89	19,601	13.82	24,876	24,959	24,876
185,000	10.86	20,089	13.83	25,592	25,447	25,592
190,000	10.83	20,576	13.85	26,309	25,934	26,309
195,000	10.80	21,061	13.86	27,027	26,419	27,027
200,000	10.77	21,545	13.87	27,747	26,904	27,747

Fixed Shares	Party A	Party B	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	2	2026			20215	20215
% time with NCP	49.99 %	0.00 %	GUIDELINE		Comb. net spendable	0%	0%
Filing status	HH/MLA	HH/MLA	Nets(adjusted)		Percent change		
# exemptions	2	2	Party A		Party A		
Wages+salary	13365	18146	Party B		Payment cost/benefit	466	466
Self-employed income	0	0	Total		Net spendable income	9489	9489
Other taxable income	0	0	Support		Change from guideline	0	0
TANF+CS received	0	0	Addons		% of combined spendable	47%	47%
Other nontaxable income	0	0	Guideln CS		% of saving over guideline	0%	0%
New spouse income	0	0	S.Clara SS		Total taxes	2672	2672
401(k) employee contrib	550	1300	Total		Dep. exemption value	0	0
Adjustments to income	0	0	-		# withholding allowances	0	0
SS paid prev marriage	0	0	Settings changed		Net wage paycheck	8732	8732
CS paid prev marriage	0	0			Party B		
Health insurance	0	73			Payment cost/benefit	-466	-466
Other medical expense	0	0			Net spendable income	10726	10726
Property tax expense	924	0	Proposed		Change from guideline	0	0
Ded interest expense	1847	0	Tactic 9		% of combined spendable	53%	53%
Charitable contributions	0	0	CS		% of saving over guideline	0%	0%
Misc tax deductions	0	0	SS		Total taxes	4420	4420
Qual bus income ded	0	0	Total		Dep. exemption value	0	0
Required union dues	140	0			# withholding allowances	0	0
Mandatory retirement	1530	2461	Saving		Net wage paycheck	10868	10868
Hardship deduction	0 *	0 *	Releases				
Other GDL deductions	0	0					
Child care expenses	0	0					

Party B pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(A)	cce(B)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Party A	466	Party B	466	Party B
Mazzi	49 - 51	0	0	0	Party A	175	Party B	175	Party B
Enzo	49 - 51	0	0	0	Party A	291	Party B	291	Party B

Annual Bonus Income Party_A

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Party_B: 0
Prior relationship(s): OFF

Additional Cost to Party_A						
Child Support			Spousal Support		Total CS	Total SS
Party_A's Bonus	% of bonus	\$	% of bonus	\$		(adjusted)
0	0.00	0	0.00	0	0	0
5,000	13.78	689	0.00	0	4,902 R	0
10,000	13.72	1,372	0.00	0	4,220 R	0
15,000	13.53	2,030	0.00	0	3,561 R	0
20,000	13.41	2,682	0.00	0	2,909 R	0
25,000	13.36	3,341	0.00	0	2,250 R	0
30,000	13.50	4,049	0.00	0	1,542 R	0
35,000	13.57	4,751	0.00	0	840 R	0
40,000	13.62	5,447	0.00	0	144 R	0
45,000	13.62	6,129	0.00	0	538	0
50,000	13.61	6,806	0.00	0	1,215	0
55,000	13.60	7,478	0.00	0	1,887	0
60,000	13.58	8,145	0.00	0	2,554	0
65,000	13.55	8,808	0.00	0	3,217	0
70,000	13.52	9,467	0.00	0	3,876	0
75,000	13.49	10,121	0.00	0	4,530	0
80,000	13.46	10,772	0.00	0	5,180	0
85,000	13.43	11,418	0.00	0	5,827	0
90,000	13.40	12,060	0.00	0	6,469	0
95,000	13.37	12,699	0.44	420	7,108	420
100,000	13.33	13,335	1.21	1,208	7,744	1,208
105,000	13.30	13,967	1.90	1,998	8,375	1,998
110,000	13.27	14,595	2.54	2,792	9,004	2,792
115,000	13.24	15,221	3.12	3,588	9,629	3,588
120,000	13.18	15,812	3.62	4,347	10,221	4,347
125,000	13.09	16,364	4.05	5,062	10,773	5,062
130,000	13.01	16,913	4.44	5,778	11,322	5,778
135,000	12.93	17,461	4.81	6,496	11,870	6,496
140,000	12.86	18,006	5.15	7,217	12,415	7,217
145,000	12.79	18,549	5.48	7,939	12,958	7,939
150,000	12.73	19,090	5.78	8,663	13,498	8,663
155,000	12.66	19,628	6.06	9,390	14,037	9,390
160,000	12.60	20,165	6.32	10,117	14,574	10,117
165,000	12.55	20,700	6.57	10,847	15,109	10,847
170,000	12.49	21,233	6.81	11,579	15,641	11,579
175,000	12.44	21,764	7.04	12,312	16,172	12,312
180,000	12.38	22,286	7.24	13,037	16,695	13,037
185,000	12.32	22,789	7.43	13,740	17,198	13,740
190,000	12.26	23,291	7.60	14,443	17,700	14,443
195,000	12.20	23,791	7.77	15,149	18,200	15,149
200,000	12.15	24,290	7.93	15,855	18,699	15,855

Annual Bonus Income

Party_B

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Party_A: 0
Prior relationship(s): OFF

Additional Cost to Party_B

Party_B's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0 R	0 R
5,000	13.03	652	9.65	482	6,243	482
10,000	12.98	1,298	12.07	1,207	6,890	1,207
15,000	12.94	1,940	12.90	1,935	7,532	1,935
20,000	12.89	2,578	13.34	2,668	8,169	2,668
25,000	12.84	3,210	13.62	3,405	8,802	3,405
30,000	12.80	3,839	13.82	4,146	9,430	4,146
35,000	12.75	4,463	13.97	4,890	10,054	4,890
40,000	12.71	5,083	14.10	5,638	10,675	5,638
45,000	12.67	5,700	14.20	6,390	11,291	6,390
50,000	12.62	6,312	14.29	7,144	11,904	7,144
55,000	12.54	6,895	14.31	7,869	12,486	7,869
60,000	12.37	7,424	14.22	8,534	13,015	8,534
65,000	12.23	7,950	14.15	9,201	13,542	9,201
70,000	12.11	8,474	14.10	9,870	14,066	9,870
75,000	11.99	8,996	14.05	10,541	14,587	10,541
80,000	11.89	9,515	14.02	11,214	15,106	11,214
85,000	11.80	10,032	13.99	11,890	15,623	11,890
90,000	11.72	10,547	13.96	12,567	16,138	12,567
95,000	11.64	11,059	13.94	13,246	16,650	13,246
100,000	11.57	11,569	13.93	13,928	17,160	13,928
105,000	11.50	12,077	13.92	14,611	17,669	14,611
110,000	11.43	12,571	13.89	15,279	18,162	15,279
115,000	11.35	13,048	13.85	15,928	18,639	15,928
120,000	11.29	13,551	13.85	16,617	19,142	16,617
125,000	11.25	14,058	13.85	17,316	19,649	17,316
130,000	11.20	14,563	13.86	18,016	20,154	18,016
135,000	11.16	15,067	13.87	18,718	20,658	18,718
140,000	11.12	15,568	13.87	19,422	21,160	19,422
145,000	11.08	16,068	13.88	20,127	21,660	20,127
150,000	11.04	16,567	13.89	20,834	22,158	20,834
155,000	11.01	17,063	13.90	21,542	22,655	21,542
160,000	10.97	17,559	13.91	22,252	23,150	22,252
165,000	10.94	18,052	13.92	22,963	23,643	22,963
170,000	10.91	18,544	13.93	23,675	24,135	23,675
175,000	10.88	19,035	13.94	24,389	24,626	24,389
180,000	10.85	19,524	13.95	25,104	25,115	25,104
185,000	10.82	20,012	13.96	25,821	25,603	25,821
190,000	10.79	20,498	13.97	26,538	26,089	26,538
195,000	10.76	20,983	13.98	27,257	26,574	27,257
200,000	10.73	21,467	13.99	27,977	27,058	27,977

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLAN KONCE,

Petitioner

VS.

GABIA PAKSTYS KONCE,

Respondent

) Case Number: FDI-25-801047

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, BIFURCATE AND ENTER
STATUS JUDGMENT AND ALLOW EXTENDED DEPOSITION FOR LA PROPERTY MANAGER
ADEL RAPHAEL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Allan Konce (Husband) and Respondent Gabia Konce (Wife). The parties married on 7/30/2010. Husband stated “TBD” for the date of separation in his Petition filed 3/4/2025, although elsewhere in his pleadings he states that the duration of marriage was 13 years. Wife never filed a Response to Husband’s Petition for Dissolution (which was personally served on Wife on 3/8/2025). Husband is represented by attorney Nancy Lofdahl.
- 2) On 5/27/2026, Husband filed an ex parte Request for Order asking the Court to bifurcate and terminate the parties’ marital status and “allow extended deposition for LA property manager Adel Raphael” which Husband states “may go as long as 35 hours total.”
- 3) The Temporary Emergency (Ex Parte) Orders filed 5/27/2026 included a finding that “the Request has been served,” set Husband’s request to bifurcate and terminate marital status for hearing on 7/30/2026, and granted Husband’s request to depose Adel Raphael, albeit for a total of

1 16 hours with the possibility for a long period at a later time for good cause shown. The Court
2 also ordered Wife to file a response on or before 7/17/2026.

- 3 4) On 7/1/2026, Husband filed another ex parte Request for Order asking the Court to terminate
4 marital status immediately. Husband states he is a licensed medical doctor with insight into his
5 own health issues and he is “gravely concerned” that he may not survive until 7/30/2026.
- 6 5) On 7/1/2026, the Court issued Temporary Emergency (Ex Parte) Orders advancing the 7/30/2026
7 hearing to 7/14/2026. The Court ordered Husband to file and serve a declaration providing good
8 cause why the Court should not apply the protections set forth in Family Code section 2337(c)(1)-
9 (6). The Court ordered Wife to file and serve any response by email and mail by 7/10/2026.
- 10 6) The Court also required that service of Husband’s 7/1/2026 Request for Order be served by email
11 to washingtonproposalassociates.com (the email address the Court has on file for Wife) and by
12 overnight mail to 2526 El Camino Real #208 Redwood City, CA 94061 on or before 7/2/2026.
- 13 7) On 7/7/2026, Husband filed a Supplemental Declaration wherein he agrees to be bound by the
14 protections set forth in Family Code section 2337(c)(1), but he does not agree to be bound by any
15 other protection set forth in Family Code section 2337 because neither party has any pension,
16 retirement, or tax deferred accounts; Husband has been on Medicare for 20 years and Wife is not
17 on any health insurance plan through him; and he is not aware of any existing rights related to
18 probate homestead, probate family allowance, retirement survivor benefits, beneficiary-
19 designation rights, or other nonprobate transfer rights that would be adversely affected by entry of
20 a status-only judgment.
- 21 8) On 7/7/2026, Husband’s attorney Nancy Lofdahl filed a declaration. Ms. Lofdahl states that on
22 7/6/2026 she emailed the following documents to Wife’s address of record
23 (washingtonproposalassociates@gmail.com) as well as another email address Wife has used in the
24 past (gabiakonce@gmail.com): FL-305 (Temporary Emergency (Ex Parte) Orders) filed
25 7/1/2026; FL-300 (Request for Order) filed 7/1/2026; FL-300 (Request for Order) filed
26 5/27/2026; FL-305 (Temporary Emergency (Ex Parte) Orders) filed 5/27/2026; SF Court
27 Tentative Ruling Instructions; SF Court Remote Appearance Instructions; blank FL-320
28 (Responsive Declaration); and Supplemental Declaration Re Family Code 2337 In Support of
29 Request for Bifurcation and Entry of Status Judgment. Ms. Lofdahl also states that on 7/6/2026,

1 she personally delivered the papers to 2526 El Camino Real #208, Redwood City, CA 94061
2 (which is a Budget Inn Motel). Ms. Lofdahl states Husband has been paying for Wife to stay at
3 that motel after the real property in Atherton was sold. Ms. Lofdahl states the woman at the front
4 desk advised that Wife was not there and she placed the documents “with other documents for
5 Respondent to pick up.”

6 9) On 7/10/2026, Wife filed a motion for continuance. Wife states she did not receive service of
7 Husband’s May 2026 request to bifurcate and terminate marital status until 7/6/2026 when
8 Husband’s attorney emailed her the documents. Wife also states that she has retained Direct
9 Legal to obtain the complete case file. Wife requests a continuance so she can be “properly given
10 the opportunity to review served files in their entirety and respond to the Court.”

11 10) On 7/10/2026, Wife filed a Declaration in Opposition to Husband’s Request. Wife states that she
12 opposes the information provided in Husband’s Supplemental Declaration filed (7/7/2026) and
13 states she is entitled to protections under Family Code section 2337(c)(1-16) (the Court assumes
14 this is a typographical errors as Family Code section 2337(c) does not contain 16 subsections).
15 Wife states Husband’s health “remains good based on credible sources at his place of
16 employment.” Wife reiterates her request to continue the hearing on Husband’s request to August
17 2026 so that she can “provide the Court a detailed response.”

18 11) Per the Proof of Electronic Service filed 7/10/2026, Wife emailed her pleading to Husband’s
19 attorney on 7/10/2026.

20 **B. Findings and Order**

- 21 1) Wife’s motion for a continuance is denied.
- 22 2) The Court hereby grants Husband’s request to bifurcate and terminate marital status. The parties’
23 marital status is dissolved and the parties are returned to their single status effective 7/14/2026.
- 24 3) As set forth in the attached Bifurcation of Status of Marriage or Domestic Partnership (FL-347),
25 the protections of Family Code section 2337(c)(1) and (3)-(6) shall apply against Husband until
26 judgment is entered on all remaining issues.
- 27 4) The parties are reminded that despite the termination of their marital status, the Standard Family
28 Law Restraining Orders set forth in the Summons continue to apply to both parties per Family
29 Code section 233(a).

1 5) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved
2 under Family Code section 2337(f).

3 6) The Court will prepare the Findings and Order After Hearing as well as a Judgment terminating
4 marital status.

PETITIONER: ALLAN KONCE	CASE NUMBER:
RESPONDENT: GABIA PAKSTYS KONCE	FDI - 25 - 801047

BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☒ petitioner ☐ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 7/14/2026

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

Type of order attached

3a(1)	3a(2)	3a(3)
☐	☐	☐
☐	☐	☐
☐	☐	☐

☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

PETITIONER: ALLAN KONCE	CASE NUMBER: FDI - 25 - 801047
RESPONDENT: GABIA PAKSTYS KONCE	

5. b. ☐ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☐ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☐ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

PETITIONER: ALLAN KONCE RESPONDENT: GABIA PAKSTYS KONCE	CASE NUMBER: FDI - 25 - 801047
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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached:

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSE ADALID PINEDA MORENO,

Petitioner

VS.

SANDRA ESTER GALDAMEZ FIGUEROA,

Respondent

) Case Number: FDI-26-802770

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jose Adalid Pineda Moreno (Father) and Respondent Sandra Ester Galdamez Figueroa (Mother) have one minor child, Edward (DOB 2/6/2018, age 8).
- 2) On for hearing is Father's 4/8/2026 request seeking joint legal and physical custody, with a week-on, week-off parenting time schedule.
- 3) On 5/8/2026, Mother filed a response in which she seeks: (1) sole legal custody and primary physical custody with visitation to Father on Fridays after school through Sundays at 4PM; (2) right of first refusal so Mother gets the option to care for Edward if Father is unable to do so for 3 hours or more during his custody time; and (3) that the Court order Father to keep Edward in extracurriculars during his custodial time. Regarding legal custody, Mother states that Father never participated in Edward's school conferences, extracurriculars, or medical appointments. Mother states that for 6 years since their separation, the parties have followed the same schedule of Mondays through Fridays to Mother and Fridays to Sundays to Father. She also states that Edward has been living with her daughter Jennifer (age 15) since 2020, and they

1 have a strong bond; therefore, changing parenting time is not in Edward's best interests. Mother
2 states her concern that Edward often stays with "strangers" when in Father's care, and that Father
3 does not tell Mother who these people are.

4 **B. Findings and Orders**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
6 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
7 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child is the United States.
 - 9 2) The Court finds it is in Edward's best interests for the parties to have joint legal and physical
10 custody, with parenting time for Father from Fridays after school to Sundays at 4PM. In addition,
11 Father shall have parenting time on one weekday afternoon/evening from after school to 7PM
12 drop off at Mother's home, curbside. The parties shall agree, in writing, to the day of the week the
13 additional parenting time will occur. If they are unable to agree, the weekly afternoon/evening
14 parenting time shall occur on Wednesdays.
 - 15 3) The parties shall notify each other of the names and contact information of any childcare
16 providers who will be caring for Edward during their respective custodial times.
 - 17 4) Right of First Refusal – If a party will be unable to care for Edward for any 6-hour period during
18 their scheduled custodial time, they shall advise the other party of their upcoming unavailability
19 and ask the other party if they are able to care for Edward. The other party shall have 24 hours to
20 respond to accept or decline care during the identified time. If no response is given or the other
21 party is not available to care for Edward, then the regularly scheduled custodial party is
22 responsible for securing childcare.
 - 23 5) If the parties wish to change the above parenting time schedule, they may do so by agreeing to a
24 different parenting schedule in writing (text message or email is acceptable). If they are unable to
25 agree to a different parenting time schedule, either party may file a new request for order with the
26 Court.
 - 27 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YESENIA MOZ CASTRO,

Petitioner

VS.

JUAN CARLOS MENENDEZ FUNES,

Respondent

) Case Number: FDV-23-816763

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Yesenia Moz Castro (Mother) and Juan Carlos Menendez (Father) have one minor child together, Valerie (DOB 4/29/2021, age 5).
- 2) On 7/19/2023, this Court issued a 2-year Domestic Violence Restraining Order (DVRO) against Father protecting Mother. The Court awarded sole legal and sole physical custody of Valerie to Mother, with parenting time for Father every Friday from 6:30PM to 7:30PM, supervised by the maternal grandmother at her home or at another location approved by the grandmother. The Court ordered that the grandmother may cancel the visit if she is not available or if she believes Father is not sober.
- 3) On 2/11/2026, Father filed a request seeking parenting time every Saturday from 1PM to 5PM. He stated he did not see Valerie after 2024 because mother did not let him see her. He stated that Mother recently asked him if he would agree to have her current husband adopt Valerie.

- 1 4) Mother filed a response setting forth the history of domestic violence. She stated that Fater saw
2 Valerie only 3 or 4 times, spent only 10 to 30 minutes with her each time, had not seen her since
3 2/24/2024, and had not called Valerie on her birthday or other special occasions. Mother stated
4 she also assumed the parental role for Father's daughter Victoria for some time because Father
5 was unable to care for her, had multiple DVROs against him, and had lost custody of a son.
- 6 5) At a 4/30/2026 hearing on Father's request, the Court ordered that Father shall have visits every
7 Saturday from 6:30PM to 7:30PM, supervised by the maternal grandmother at the grandmother's
8 house or at another location approved by the grandmother. The Court set a review hearing for
9 7/14/2026.
- 10 6) Since the last hearing, the parties attended a readiness hearing on Mother's new request to
11 suspend visits. The parties are scheduled to attend mediation in that matter at 1:30PM on
12 7/15/2026 with Maya Ponce, and a hearing is scheduled for 8/4/2026.
- 13 7) On 7/9/2026, Father filed a declaration stating that the visits have been going well and that he
14 wishes to continue seeing Valerie. He attaches to his declaration a May 2026 certificate for
15 completion of a parenting class from Kids' Turn.

16 **B. Findings and Orders**

- 17 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
18 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
19 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
20 child is the United States.
- 21 2) The matter is hereby continued to the currently scheduled hearing date of **8/4/2026 at 9AM in**
22 **Department 404** to allow the parties to attend mediation. The parties shall attend mediation at
23 1:30PM on 7/15/2026 with Maya Ponce. If they are unable to reach an agreement at mediation,
24 they shall appear at the hearing on 8/4/2026. The parties are reminded to check the Court's
25 tentative ruling at 2PM on 8/3/2026 and to notify the Court and the other party if they object to
26 the tentative ruling and intend to appear at the 8/4/2026 hearing.
- 27 3) The Court will prepare the Findings and Order After Hearing.
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